

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO S.B. 1662
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-901, Arizona Revised Statutes, is amended to
3 read:

4 13-901. Probation

5 A. If a person who has been convicted of an offense is eligible for
6 probation, the court may suspend the imposition or execution of sentence
7 and, if so, shall without delay place the person on intensive probation
8 supervision pursuant to section 13-913 or supervised or unsupervised
9 probation on such terms and conditions as the law requires and the court
10 deems appropriate, including participation in any programs authorized in
11 title 12, chapter 2, article 11. If a person is not eligible for
12 probation, imposition or execution of sentence shall not be suspended or
13 delayed. If the court imposes probation, it may also impose a fine as
14 authorized by chapter 8 of this title. If probation is granted the court
15 shall impose a condition that the person waive extradition for any
16 probation revocation procedures and it shall order restitution pursuant to
17 section 13-603, subsection C where there is a victim who has suffered
18 economic loss.

19 B. IF PROBATION IS GRANTED, THE FOLLOWING APPLY TO ANY CONDITIONS
20 OF PROBATION IMPOSED [UNLESS OTHERWISE REQUIRED BY LAW]:

21 1. IN DETERMINING THE DEFENDANT'S CONDITIONS OF PROBATION, THE
22 COURT OR A PROBATION OFFICER SHALL [ONLY] IMPOSE THE FEWEST AND LEAST
23 RESTRICTIVE CONDITIONS OF PROBATION THAT ARE [REASONABLY NECESSARY]
24 [INDIVIDUALLY DETERMINED AND NARROWLY TAILORED] TO:

25 (a) ASSIST THE DEFENDANT IN LEADING A LAW-ABIDING LIFE.

26 (b) PROTECT PUBLIC SAFETY.

27 (c) PROMOTE THE DEFENDANT'S REHABILITATION.

1 2. THE CONDITIONS OF PROBATION THAT ARE IMPOSED SHALL BE INFORMED
2 BY THE DEFENDANT'S CRIMINOGENIC RISK AND NEEDS AS ESTABLISHED BY A
3 VALIDATED RISK ASSESSMENT TOOL.

4 3. THE COURT OR THE PROBATION OFFICER SHALL:

5 (a) BEFORE IMPOSING A STANDARD CONDITION OF PROBATION, CONSIDER
6 WAIVING ANY STANDARD CONDITION OF PROBATION THAT IS NOT REASONABLY
7 NECESSARY TO ACHIEVE THE PURPOSES PRESCRIBED IN PARAGRAPH 1 OF THIS
8 SUBSECTION.

9 (b) BEFORE IMPOSING A SPECIAL CONDITION OF PROBATION, CONSIDER ALL
10 INFORMATION THAT IS PROPERLY PRESENTED TO THE COURT BEFORE IMPOSING A
11 SPECIAL CONDITION OF PROBATION, SHALL DETERMINE IF THE CONDITION IS MORE
12 RESTRICTIVE THAN IS REASONABLY NECESSARY TO ACHIEVE THE PURPOSES
13 PRESCRIBED IN PARAGRAPH 1 OF THIS SUBSECTION AND SHALL NOT IMPOSE A
14 SPECIAL CONDITION OF PROBATION UNLESS THE SPECIAL CONDITION IS SUPPORTED
15 BY THE RECORD.

16 ~~[(c) ENSURE THAT ALL CONDITIONS OF PROBATION ARE INDIVIDUALLY~~
17 ~~DETERMINED AND NARROWLY TAILORED TO THE DEFENDANT.]~~

18 4. IF A PRESENTENCE REPORT WAS PREPARED PURSUANT TO SECTION 13-701,
19 THE CONDITIONS OF PROBATION IMPOSED SHALL BE INFORMED BY THE FINDINGS OF
20 THAT PRESENTENCE REPORT.

21 C. When granting probation to an adult the court, as a condition of
22 probation, shall assess a monthly fee of not less than \$65 unless, after
23 determining the inability of the probationer to pay the fee, the court
24 assesses a lesser fee. This fee is not subject to any surcharge. In
25 justice and municipal courts the fee shall only be assessed when the
26 person is placed on supervised probation. For persons placed on probation
27 in the superior court, the fee shall be paid to the clerk of the superior
28 court and the clerk of the court shall pay all monies collected from this
29 fee to the county treasurer for deposit in the adult probation services
30 fund established by section 12-267. For persons placed on supervised
31 probation in the justice court, the fee shall be paid to the justice court
32 and the justice court shall transmit all of the monies to the county
33 treasurer for deposit in the adult probation services fund established by
34 section 12-267. For persons placed on supervised probation in the
35 municipal court, the fee shall be paid to the municipal court. The
36 municipal court shall transmit all of the monies to the city treasurer who
37 shall transmit the monies to the county treasurer for deposit in the adult
38 probation services fund established by section 12-267. Any amount
39 assessed pursuant to this subsection shall be used to supplement monies
40 used for the salaries of adult probation and surveillance officers and for
41 support of programs and services of the superior court adult probation
42 departments.

43 ~~B.~~ D. The period of probation shall be determined according to
44 section 13-902, except that if a person is released pursuant to section
45 31-233, subsection B and community supervision is waived pursuant to
46 section 13-603, subsection K, the court shall extend the period of

1 probation by the amount of time the director of the state department of
2 corrections approves for the inmate's temporary release.

3 ~~E.~~ E. The court, in its discretion, may issue a warrant for the
4 rearrest of the defendant and may modify or add to the conditions or, if
5 the defendant commits an additional offense or violates a condition, may
6 revoke probation in accordance with the Arizona rules of criminal
7 procedure at any time before the expiration or termination of the period
8 of probation. If the court revokes the defendant's probation and the
9 defendant is serving more than one probationary term concurrently, the
10 court may sentence the person to terms of imprisonment to be served
11 consecutively.

12 ~~F.~~ F. At any time during the probationary term of the person
13 released on probation, any probation officer, without warrant or other
14 process and at any time until the final disposition of the case, may
15 rearrest any person and bring the person before the court.

16 ~~G.~~ G. The court, on its own initiative or on application of the
17 probationer, after notice and an opportunity to be heard for the
18 prosecuting attorney and, on request, the victim, may terminate the period
19 of probation or intensive probation and discharge the defendant at a time
20 earlier than that originally imposed if in the court's opinion the ends of
21 justice will be served and if the conduct of the defendant on probation
22 warrants it.

23 ~~H.~~ H. When granting probation the court may require that the
24 defendant be imprisoned in the county jail at whatever time or intervals,
25 consecutive or nonconsecutive, the court shall determine, within the
26 period of probation, as long as the period actually spent in confinement
27 does not exceed one year or the maximum period of imprisonment allowed
28 under chapter 7 of this title, whichever is the shorter.

29 ~~I.~~ I. If the defendant is placed on lifetime probation and has
30 served one year in the county jail as a term of probation, the court may
31 require that the defendant be additionally imprisoned in the county jail
32 at whatever time or intervals, consecutive or nonconsecutive, the court
33 shall determine, within the period of probation if the defendant's
34 probation is revoked by the court and the defendant is subsequently
35 reinstated on probation. The period actually spent in confinement as a
36 term of being reinstated on probation shall not exceed one year or, when
37 including the initial one-year period of incarceration imposed as a term
38 of probation, the maximum period of imprisonment allowed under chapter 7
39 of this title, whichever is shorter.

40 ~~J.~~ J. If restitution is made a condition of probation, the court
41 shall fix the amount of restitution and the manner of performance pursuant
42 to chapter 8 of this title.

43 ~~K.~~ K. When granting probation, the court shall set forth at the
44 time of sentencing and on the record the factual and legal reasons in
45 support of each sentence.

46 ~~L.~~ L. If the defendant meets the criteria set forth in section
47 13-901.01 or 13-3422, the court may place the defendant on probation

1 pursuant to either section. If a defendant is placed on probation
2 pursuant to section 13-901.01 or 13-3422, the court may impose any term of
3 probation that is authorized pursuant to this section and that is not in
4 violation of section 13-901.01.

5 ~~K~~. M. If the court imposes a term of probation, the court may
6 require the defendant to report to a probation officer. The court or the
7 defendant's probation officer may allow the defendant to fulfill a
8 reporting requirement through remote reporting. The probation officer
9 shall take into consideration and make accommodations for the
10 probationer's work schedule, family caregiver obligations, substance abuse
11 treatment or recovery program, mental health treatment, transportation
12 availability and medical care requirements before setting the reporting
13 time and location requirements for the probationer.

14 ~~L~~. N. If a probationer makes a written request to the supervising
15 probation department to courtesy transfer the probationer's intensive
16 probation supervision or supervised probation to another county in this
17 state with the intent to reside in that county and provides proof of
18 family caregiver obligations, employment or housing, or an offer of
19 employment or housing that will assist in the probationer's positive
20 behavioral change, the supervising probation department shall do all of
21 the following:

22 1. Confirm the details of the probationer's employment, housing or
23 family caregiving plans.

24 2. Review any victim safety concerns and ensure compliance with the
25 victims' bill of rights.

26 3. Submit the request for permission to proceed to the receiving
27 county within seven business days after receipt.

28 ~~M~~. O. After verifying the information submitted by the sending
29 probation department pursuant to subsection ~~L~~ N of this section, the
30 receiving probation department shall provide the sending probation
31 department with permission for the probationer to proceed to the receiving
32 county within seven business days after receipt unless the receiving
33 probation department finds the basis for the plan is not factual or the
34 transfer will endanger the victim.

35 ~~N~~. P. If a probationer's intensive probation supervision or
36 supervised probation is courtesy transferred to another county pursuant to
37 subsection ~~L~~ N of this section and the probationer subsequently violates
38 the terms of the probationer's probation or commits an additional offense
39 while on probation, the probation department in the county in which the
40 probation violation or additional offense occurred may not return the
41 probationer's intensive probation supervision or supervised probation back
42 to the county in which the probationer's probation was originally imposed
43 except for revocation hearings or an order of the court.

44 Sec. 2. Section 13-903, Arizona Revised Statutes, is amended to
45 read:

46 13-903. Calculation of periods of probation

1 A. A period of probation commences on the day it is imposed or as
2 designated by the court, and an extended period of probation commences on
3 the day the original period lapses.

4 B. If a court determines that the defendant violated a condition of
5 the defendant's probation but reinstates probation, the period between the
6 date of the violation and the date of restoration of probation is not
7 computed as part of the period of probation. If it is determined that the
8 defendant is not a violator, there is no interruption of the period ~~OF~~
9 ~~PROBATION~~.

10 C. The running of the period of probation shall cease during the
11 unauthorized absence of the defendant from the jurisdiction or from any
12 required supervision and shall resume only ~~upon~~ ~~ON~~ the defendant's
13 voluntary or involuntary return to the probation service.

14 D. The running of the period of probation shall cease during the
15 period from the filing of the petition to revoke probation to the
16 termination of revocation of probation proceedings, except that if a court
17 determines that the defendant is not a violator, there is no interruption
18 of the period of probation.

19 E. If probation is imposed on one who at the time is serving a
20 sentence of imprisonment imposed on a different conviction, service of the
21 sentence of imprisonment shall not satisfy the probation.

22 F. Time spent in custody under section 13-901, subsection ~~F~~ ~~H~~
23 shall be credited to any sentence of imprisonment imposed ~~upon~~ ~~ON~~
24 revocation of probation.

25 Sec. 3. Section 13-917, Arizona Revised Statutes, is amended to
26 read:

27 13-917. Modification of supervision

28 A. The adult probation officer shall periodically examine the risk
29 and needs of each person granted intensive probation and the risks of
30 modifying the level of supervision of the person. The court or the adult
31 probation officer may at any time modify the level of intensive probation
32 supervision of a person granted intensive probation. The court may
33 transfer the person to standard probation or terminate the period of
34 intensive probation pursuant to section 13-901, subsection ~~F~~ ~~G~~.

35 B. If a petition to revoke the grant of intensive probation is
36 filed and the court finds that the person has committed an additional
37 felony offense that posed a serious threat or danger to the community, the
38 court shall revoke the grant of intensive probation and impose a term of
39 imprisonment as authorized by law. If the court finds that the person has
40 committed a violation of a condition of intensive probation that posed a
41 serious threat or danger to the community, the court shall revoke the
42 grant of intensive probation and impose a term of imprisonment as
43 authorized by law. If the court finds that the person has violated any
44 other condition of intensive probation, the court may modify the
45 conditions of intensive probation or may revoke the grant of intensive
46 probation and impose a term of imprisonment as authorized by law.

1 C. The court shall notify the parties, and the victim on request,
2 of any proposed modification of the terms of a person's intensive
3 probation if that modification will substantially affect the person's
4 contact with or safety of the victim or if the modification involves
5 restitution or incarceration status.

6 Sec. 4. Section 13-924, Arizona Revised Statutes, is amended to
7 read:

8 13-924. Probation; earned time credit; work time credit;
9 applicability; definitions

10 A. The court may adjust the period of a probationer's supervised
11 probation on the recommendation of an adult probation officer for earned
12 time credit or work time credit.

13 B. Earned time credit equals twenty days for every thirty days that
14 a probationer does all of the following:

15 1. Exhibits positive progression toward the goals and treatment of
16 the probationer's case plan.

17 2. Is current on payments for ~~court-ordered~~ COURT-ORDERED
18 restitution and is in compliance with all other nonmonetary obligations.

19 3. Is current in completing community restitution.

20 C. Work time credit equals thirty days for every thirty days that a
21 probationer does all of the following:

22 1. Is engaged in eligible employment. A probationer must provide
23 supporting documentation to the supervising probation officer within five
24 business days after completing thirty days of eligible employment. The
25 supervising probation officer must verify the probationer's employment
26 through the supporting documentation that is provided by the probationer
27 and by any other means that the court determines is necessary to verify
28 the work, including site visits and telephonic verification. The
29 probation officer must document any request for work time credit that is
30 denied.

31 2. Exhibits positive progression toward the goals and treatment of
32 the probationer's case plan.

33 3. Is current on payments for court-ordered restitution and is in
34 compliance with all other nonmonetary obligations.

35 4. Is current in completing community restitution.

36 D. Any earned time credit and work time credit awarded pursuant to
37 this section shall be revoked if a probationer is found in violation of a
38 condition of probation.

39 E. This section does not apply to a probationer who is currently:

40 1. On lifetime probation.

41 2. On probation for any class 2 or 3 felony.

42 3. On probation exclusively for a misdemeanor offense.

43 4. Required to register pursuant to section 13-3821.

44 F. This section has no effect on the ability of the court to
45 terminate the period of probation or intensive probation pursuant to
46 section 13-901, subsection ~~F~~ G at a time earlier than originally imposed.

47 G. For the purposes of this section:

Senate Amendments to S.B. 1662

1 1. "Eligible employment" means any occupation or combination of
2 occupations for which a person can provide supporting documentation
3 verifying at least one hundred thirty wage-earning hours in any thirty-day
4 period.

5 2. "Supporting documentation" means an employment record, pay stub,
6 employment letter, contract or other reliable means of verifying
7 employment.

8 Enroll and engross to conform

9 Amend title to conform

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